

denied.

5. Violation of Concord Anti-Harassment Ordinance (C/A 6)

Plaintiffs allege that defendant violated the Concord Tenant Anti-Harassment Ordinance. Similar to the analysis with respect to the first and second causes of action, defendant fails to meet her initial burden.

Plaintiffs' claim for harassment in Violation of the Concord Anti-Harassment Ordinance, Municipal Code § 19.50.10, et seq., does not state precisely what evidentiary facts form the basis for this cause of action. Plaintiffs simply allege that "Defendants violated the ordinance." (Complaint, ¶39.) This ultimate fact begs the question of what evidence plaintiffs have to prove this claim at trial. But nothing in the separate statement provided by moving defendant outlines the scope of this claim from plaintiffs' perspective, leaving the Court to guess at what underlying evidence might exist.

In order to meet her initial burden, moving defendant would need contention interrogatories or some other means of eliciting the basis (or lack thereof) for this claim in order to show there are no triable issues of material fact. Defendant fails to meet her initial burden in this respect and therefore, the motion on this cause of action must be denied.

6. Violation Of Business and Professions Code Section 17200 (C/A 7)

An unlawful business practice claim brought pursuant to Civil Code section 17200, et seq prohibits unfair competition defined as any unlawful, unfair, or fraudulent business act or practice. Claims based on this code provision "borrow" violations of other laws and treats them as unlawful practices that are independently actionable under this provision. (See *Cel-Tech Communications, Inc. v. Los Angeles Cellular Telephone Co.* (1999) 20 Cal. 4th 163, 180.) As defendant points out, plaintiffs' claim under this provision arises from their other causes of action. As there is an insufficient showing on those other claims, defendant's motion on this cause of action is denied.

3. 9:00 AM CASE NUMBER: C24-02709
CASE NAME: MARIA SEREDKINA VS. PAVEL YEFENAU
***HEARING ON MOTION IN RE: TO CONSOLIDATE FOR ALL PURPOSES**
FILED BY: YEFENAU, PAVEL
TENTATIVE RULING:

Before the Court is a motion by plaintiff Maria Seredkina to consolidate this action with a related action, Case No. C25-02577, for all purposes. For the reasons set forth, the motion is **granted**.

Background

In this action, Plaintiff Maria Seredkina sued her former spouse Pavel Yefanau for claims arising out of his allegedly accessing plaintiff's "personal and work" electronic devices, including corporate phones and computers provided by her employer, without her consent. (First Am. Compl. ("FAC") generally ¶¶ 6-9.) She alleges that, by Yefanau obtaining access to her personal electronic devices without her consent or permission, defendant discovered plaintiff was involved in a relationship with her co-worker Stuart Maschmeier. (FAC ¶ 8.) Seredkina's operative FAC alleges causes of action for invasion of her constitutional right to privacy and intrusion into private affairs.

Stuart Maschmeier filed his own lawsuit against Yefanau arising out of Yefanau's accessing

Seredkina's electronic devices in a related action also pending in this Court, *Stuart Maschmeier v. Pavel Yefanau and Does 1 through 20, inclusive*, Case No. C25-02577 ("Related Action"). His original complaint was filed on September 11, 2025 and alleged causes of action for violation of Civil Code section 1708.85 (revenge porn), invasion of privacy, and intentional infliction of emotional distress based on Yefanau's accessing material on Seredkina's electronic devices and disseminating the information. (RJN Exh. 2 [Orig. Compl. ¶¶ 8-17.]) Maschmeier has since filed an Amended Complaint, alleging the same three causes of action with similar allegations regarding Yefanau's accessing private information and photos of Maschmeier through Seredkina's electronic devices without her consent.

Defendant Yefanau seeks to consolidate this action and the Related Action for all purposes. The motion and notice of hearing was served on counsel for Maschmeier as well as counsel for Seredkina. Only Seredkina has filed an opposition to the motion. Counsel for the moving party confirms in his reply declaration that Maschmeier is not opposing consolidation. (Christopherson Reply Decl. ¶ 2.)

Legal Standards Applicable to Motion for Consolidation

Code of Civil Procedure section 1048 provides, "When actions involving a common question or law or fact are pending before the court, it may order a joint hearing or trial of any or all of the matters in issue in the actions; it may order all the actions consolidated and it may make such orders concerning proceedings therein as may tend to avoid unnecessary costs or delay." (Code Civ. Proc. § 1048(a).)

"Consolidation under Code of Civil Procedure section 1048 is permissive, and it is for the trial court to determine whether the consolidation is for all purposes or for trial only. [Citation omitted.]" (*Hamilton v. Asbestos Corp.* (2000) 22 Cal. 4th 1127, 1149.)

The decision whether to consolidate actions is left to the trial court's discretion based on its assessment of various factors, including whether there are common issues of fact or law, and even if there are, whether other factors, such as potential prejudice to one or more parties, delay, confusion or other considerations do not warrant consolidation. (*Todd- Stenberg v. Dalkon Shield Claimants Trust* (1996) 48 Cal.App.4th 976, 978-979 ["Code of Civil Procedure section 1048 grants discretion to the trial courts to consolidate actions involving common questions of law or fact. The trial court's decision will not be disturbed on appeal absent a clear showing of abuse of discretion."].) (*See also Walker v. Walker* (1960) 177 Cal. App. 2d 89, 91 ["Consolidation of cases under Code of Civil Procedure, section 1048, rests within the sound discretion of the trial judge. [Citation omitted.]"].)

Defendant's Request for Judicial Notice

Yefanau asks the Court to take judicial notice of the first amended complaint filed in this action and the complaint filed in the Related Action. (Def. RJN Exhs. 1 and 2.) Plaintiff Seredkina filed a "response" to the request stating it is "unclear" why Yefanau requests judicial notice of the pleadings and that the Court should deny the request. Seredkina quotes *Fremont Indemnity Co. v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, in which the Court explains that, "Although the existence of a document may be judicially noticeable, the truth of statements contained in the document and its proper interpretation are not subject to judicial notice if those matters are reasonably disputable. (*Id.* at 113 [emphasis added].) (*See also StorMedia, Inc. v. Superior Court* (1999) 20 Cal.4th 449, 457, fn. 9 ["When judicial notice is taken of a document, however, the truthfulness and proper interpretation of the document are disputable. [Citation.]"].)

Under Code of Civil Procedure section 1048(a) and the case law, the facts alleged and the claims made in the actions for which consolidation is sought are necessarily relevant to the determination of the motion. *Fremont* does not stand for the proposition that "the Court may not, under Evidence Code section 452 and *Fremont*, take judicial notice of the statements in the Complaint." (Resp. to RJN p. 2, ll. 27-28 [emphasis added].) The Court **grants** the request for judicial notice. The Court takes judicial notice of the fact the complaints and amended complaints were filed in this and the Related Action, and the allegations and claims each party makes in their respective pleadings, but not the truth of the content of the pleadings. (Evid. Code § 452(d).)

Analysis

The Court agrees that both actions arise out of a common set of facts, specifically that (a) Seredkina and Maschmeier became romantically involved, (b) Yefanau allegedly without consent or authority accessed information on Seredkina's electronic devices, including work devices, and (c) through Yefanau's unauthorized access of material on Seredkina's electronic devices, Yefanau (i) obtained and disseminated private information regarding Seredkina (FAC ¶¶ 7, 8, 11-14), and (ii) obtained private information and private photos of Maschmeier (Related Action Am. Compl. ¶¶ 8-11, 13-15). These common factual allegations are the foundation for Seredkina's invasion of privacy and intrusion into private affairs causes of action and Maschmeier's claims for revenge porn, invasion of privacy, and intentional infliction of emotional distress. Both actions involve one common issue of law arising out of these common facts, the claims for invasion of privacy both plaintiffs are asserting.

While Maschmeier's first cause of action for violation of Civil Code section 1708.85 also involves the alleged dissemination of the private photos to others, an additional fact or element not necessarily involved in Seredkina's or Maschmeier's other causes of action, that difference does not preclude consolidation. Similarly, the Court does not find that the lack of evidence that Yefanau's obtaining Seredkina's private information and obtaining Maschmeier's private information and photos occurred on the same dates and times warrants denial of consolidation. The operative complaints allege the same factual scenario, and Seredkina has not explained why the fact some of one party's information was obtained on one particular date and the other party's on a different date makes a difference in considering consolidation.

The standard of the case law and statute are that there are "common" questions of fact, not "identical" questions of fact. It is likely there will be substantial duplication of discovery if the two actions are not consolidated, with inefficiencies for the Court, and excess costs for the parties and third parties subject to discovery, as well as the risk of inconsistent rulings. That each plaintiff also may have suffered some individualized injury does not preclude consolidation. (*Todd-Steinberg, supra*, 48 Cal.App.4th at 979.)

In *Todd-Steinberg, supra*, the Court of Appeal found no abuse of discretion by the trial court consolidating three separate actions by individual plaintiffs for personal injuries they alleged they suffered using the Dalkon Shield. In affirming the trial court's proper exercise of its discretion to consolidate the actions, the Court explained, "The trial court correctly anticipated that a large portion of the trial would be devoted to issues common to the three cases: how PID [pelvic inflammatory disease] occurs, whether it can be caused by the use of Dalkon Shield, and what other factors might cause or contribute to the disease. In short, a large part of the trial was devoted to educating the jury

about the female reproductive system, the Dalkon Shield and PID." (*Todd-Stenberg, supra*, 48 Cal.App.4th at 979.) While there may have been some idiosyncratic facts relevant to each plaintiff's claims, the essential basis for liability – product liability for a dangerous device that caused a particular disease in each plaintiff – were present in each action that was consolidated.

Seredkina also argues if the cases are litigated together there is a risk of prejudice. (Opp. p. 4, ll. 23-24.) The prejudice she identifies is potential delay in discovery. Though she does not elaborate on how and why consolidation will result in discovery delay and may result in a stay of the claims alleged in her action, the concern is apparently that Maschmeier's claims raise the risks of potential criminal liability for Yefanau. Yefanau has asserted that he has a risk of criminal liability based on Seredkina's claims in this action. The Court previously denied Yefanau a general stay of discovery based on fifth amendment issues and based on the pendency of the consolidation motion. (See 6/13/2025 OAH; Order Den. Ex Parte App. 9/25/2025. Seredkina has not demonstrated prejudice by consolidation of the actions, particularly prejudice sufficient to outweigh the benefits of consolidation under the circumstances.

4. 9:00 AM CASE NUMBER: C24-03541

CASE NAME: DANICA AULAUMEA VS. AIRBNB, INC.

***MOTION/PETITION TO COMPEL ARBITRATION (CONTINUED FROM 02.05.26)**

FILED BY:

TENTATIVE RULING:

Off calendar. Matter settled.

5. 9:00 AM CASE NUMBER: C25-00096

CASE NAME: LAFAYETTE LAND COMPANY, LLC VS. MANINDER DHANJU

***HEARING ON MOTION IN RE: TO BE RELIEVED AS COUNSEL FOR DEFS**

FILED BY:

TENTATIVE RULING:

The motion of counsel Weston Law Group, PC and Stephanie Meyer to withdraw as counsel for defendant Maninder Dhanju is off calendar as moot, based on the substitution of counsel for Dhanju, filed December 9, 2025.

6. 9:00 AM CASE NUMBER: C25-01950

CASE NAME: KENNETH RAI VS. JEFFREY RAI

HEARING ON DEMURRER TO: COMPLAINT

FILED BY: RAI, JEFFREY L.

TENTATIVE RULING:

Before the Court is a demurrer by defendant Jeffrey Rai to plaintiff Kenneth Rai's complaint. For the reasons set forth, the general demurrers to the first, second, third, and fourth causes of action are **sustained, with leave to amend**.

Background

Plaintiff Kenneth Rai alleges claims against his son Jeffrey Rai for breach of contract, fraud based on misrepresentation, and common counts for account stated and open book account. (For clarity, the Court in some instances will identify the parties by their first names Kenneth and Jeffrey given their